

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARLENE OLIVER.

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER ANDUJAR, TAX REG 941348,
INDIVIDULLY AND AS A POLICE
OFFICER, POLICE OFFICER JOHN DOES ,
#1-#5, INDIVIDUALLY AND AS POLICE
OFFICERS,

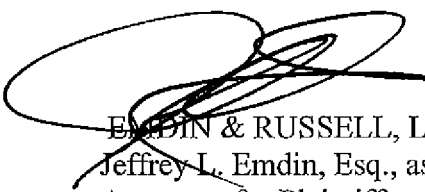
Plaintiff designates BRONX
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 14 day of *Nov*, 2019


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Andujar
Tax # 941348
c/o 41st pct.
1035 Longwood Avenue
Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DARLENE OLIVER.

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER ANDUJAR, TAX REG 941348,
INDIVIDULLY AND AS A POLICE
OFFICER, POLICE OFFICER JOHN DOES ,
#1-#5, INDIVIDUALLY AND AS POLICE
OFFICERS,Defendants.
-----X

The plaintiff, Darlene Oliver., by her attorneys, Ermdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City" was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", by and through its' agents, servants and/or employees, operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 8th day of May, 2018, Police Officer Andujar, hereinafter referred to as "Andujar" was employed as

a Detective by the “City” and/or “NYPD” and assigned to the 41st pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Andujar’s tax id number is 941348.

4. Upon information and belief at all times hereinafter mentioned and on the 8th day of May, 2018, “Andujar”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 8th day of May, 2018, Police Officer John Does #1- #5 were employed as Police Officers by the “City” and/or “NYPD” and at all relevant times set forth below acted in the capacity of a police officer(s). They are sued in fictitious capacities because their identities are presently unknown.

6. Upon information and belief at all times hereinafter mentioned and on the 8th day of May, 2018, John Does #1- #5 were acting within the scope of his/their employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Collectively Andujar and John Does #1- #5 will hereafter be referred to as the “officers”.

8. Upon information and belief, on May 8, 2018 the “officers”, individually and/or collectively were acting under and required to follow the New York City Police Patrol Guidelines, Interim Orders and/or Administrative Orders

9. On the 8th day of May, 2018, plaintiff, Darlene Oliver, hereinafter referred to as “Oliver” or as the “plaintiff” was a resident of the State of New York, County of Bronx.

10. That on May 8, 2018, at approximately 5:40 p.m. the plaintiff was lawfully operating a motor vehicle in the vicinity of Lower Bruckner Blvd/Expressway and Hunts Point

Avenue in Bronx County , New York, hereinafter also referred to as “the location”. At that time and place, the plaintiff’s vehicle and one other vehicle were pulled over by Andujar. Initially, Andujar spoke to the operator of the other vehicle and let him go, before proceeding to the plaintiff.

11. At that time and location, Andujar requested plaintiff’s license and registration. Upon receipt of the requested documents, Andujar went to his vehicle. Andujar returned to give the plaintiff a ticket, telling her that she had a certain amount of days to respond.

12. Upon information and belief, Andujar took exception to plaintiff’s reaction and attitude, and suddenly insisted that she had an open warrant, which she did not.

13. Andujar ordered the plaintiff out of the car to place her under arrest. Andujar took out his metal stick and started banging it on plaintiff’s vehicle.

14. The plaintiff dialed 911 for help.

15. Upon information and belief, Andujar then called for back up.

16. Numerous additional officers arrived, including officer John Does #1-#5, and they began shaking the car. Once the car door opened the officers grabbed the plaintiff by her collar and dragged her from the car onto the pavement.

17. The plaintiff was picked up and slammed against the car, elbowed in her back, and rear handcuffed.

18. The plaintiff was dragged to a police car. The plaintiff was transported to a precinct where she was searched by a female police officer.. The child in plaintiff’s vehicle was also taken to the precinct .

19. The plaintiff sustained injuries, and as a result was handcuffed and shackled and

transported to Lincoln Hospital, although her treatment was delayed as a result of the conduct of the defendants.

20. The plaintiff's vehicle and her personal property therein, was confiscated by the police and kept in their possession for over two months. In addition when the vehicle was returned plaintiff's ez pass, shoes, and work materials were missing

21. The plaintiff was held against her will until arraignment on or about May 10, 2018. The claimant was falsely charged with committing the crimes of resisting arrest, disorderly conduct, and obstructing governmental administration.

22. The plaintiff was also issued a false traffic summons for disobeying a traffic device, summons # B18H009891.

23. The plaintiff was required to make court appearances to defend herself against the false charges, until all charges were dismissed against her on June 7, 2018 by Judge Gouldborne.

24. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City" by Order of the Court dated December 20, 2018.

25. The City did not request a 50(h) hearing.

26. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

27. That this action is commenced within one year and 90 days after the cause of action arose.

28. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

27. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "26" with the same force and effect as if more fully and at length set forth herein.

28 That beginning on or about the 8th day of May, 2018, at or about approximately 5:40 p.m. at or near the "location" until the plaintiff was arraigned and released on her own recognizance on May 10, 2018, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

29. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crime.

30. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

31. That the defendants, their agents, servants and/or employees, as set forth above,

intended to confine the plaintiff; the plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged.

32. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, pain, humiliation, and loss of freedom and the said plaintiff has been otherwise damaged.

33. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully and at length set forth herein.

35. That beginning on or about the 8th day of May, 2018, at or about approximately 5:40 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against her will under full force of arms..

36. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable ground to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

37. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants

and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

38. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

39. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, pain, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

40. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

41. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and affect as if more fully and at length set forth herein.

42. As set forth above the plaintiff was seized, grabbed, pulled, dragged, searched, handcuffed, struck, elbowed, hit, shackled, slammed over a car, and threatened and by the defendant, "City", and the "NYPD", and its agents/servants, and/or employees, including upon information and belief the named "officers"..

43. That all said contact was committed without the plaintiff's permission or consent.

44. That all said contact was unlawful and without privilege.

45. That all contact committed by defendants through their agents, servants, and/or employees, including defendant “officers”, was offensive to plaintiff and caused her to fear further contact and imminent harm, intimidated plaintiff, and caused plaintiff to sustain physical and/or psychological injury.

46. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

47. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR EXCESSIVE FORCE

48. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and affect as if more fully and at length set forth herein.

49. As set forth above the plaintiff was seized, grabbed, searched, held, dragged, handcuffed, struck, elbowed, hit, shackled, slammed over a car, and threatened by the defendant, “City”, and the “NYPD”, and its agents/servants, and/or employees, including upon information and belief the named “officers”..

50. That all said contact was excessive, unreasonable, and beyond all reasonable means necessary to effectuate the plaintiff’s arrest and/or compliance.

51. That all said contact was unlawful and without privilege.

52. That all contact committed by defendants through their agents, servants, and/or employees, including defendant "officers", was offensive to plaintiff and caused her to fear further contact and imminent harm, intimidated plaintiff, and caused plaintiff to sustain physical and/or psychological injury.

53. That said excessive contact took place in the presence of other defendant officers who had the ability to stop, intervene, and/or mitigate the harm and consciously failed to do so, thereby implicitly condoning and participating in said acts.

54. That the above acts committed by the defendants constituted the use of excessive force on the plaintiff while the defendant officers were acting within the scope of their employment.

55. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

**AS AND FOR A FIFTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR FAILING TO INTERVENE AND PROTECT**

56. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "55" with the same force and affect as if more fully and at length set forth herein.

57. As set forth above the plaintiff was seized, grabbed, dragged, searched, held, handcuffed, struck, hit, shackled, slammed over a car and threatened by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including upon information and belief the named "officers"..

58. That one or more officers were present while their fellow officers assaulted, battered and used excessive force on the plaintiff, and they failed to intervene and stop the same from occurring despite having the ability to do so.

59. That one or more officers were present while their fellow officers seized, searched the plaintiff and illegally arrested the plaintiff, and they failed to intervene and stop the same from occurring despite having the ability to do so.

60. That plaintiff's constitutional rights under the State of New York and the United States of America were violated by the defendants through their agents, servants, and/or employees, including defendant "officers", and officers present failed to intervene, stop, report and/or protect the plaintiff's rights and allowed them to be violated by the defendant officers while acting under the color of law.

61. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and affect as if more fully and at length set forth herein.

63. That the defendant, "City" was careless and reckless in hiring, retaining, training, failing to retrain, supervising, investigating, assigning, monitoring, disciplining and promoting as

and for its employees, the named defendant "officers" in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers/detectives; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

64. That defendant officers while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; use of excessive force by said officers and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

65. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, deprivation of property and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including the named defendants herein without any negligence on the part of the plaintiff contributing thereto.

66. That by reason of the aforesaid, the plaintiff, was imprisoned, lost her freedom,

was physically and emotionally injured, and she was thereby damaged.

67. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICE ANDUJAR AND JOHN DOES
1-5 EACH IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

68. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.

69. That at all times hereinafter mentioned, the defendant "Andujar" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

70. That at all times hereinafter mentioned, the defendants John Doe #1-#5 were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

71. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

72. That during all times hereinafter mentioned, the defendants "officers"

individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived her of the rights, privileges and immunities secured to her by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

73. That the unlawful and illegal conduct of defendants "officers" deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States as well as:

b) The right to privacy

c) The right to Due Process Law.

d) The right to equal protection under the law.

e) The right not to be subjected to cruel and unusual punishment and/or inhumane treatment

f) The right to freedom of speech and expression

74. That by reason of the aforesaid violations, by and through the improper stop, search and seizure of the plaintiff; use of force, use of arbitrary, excessive force, false arrest and false imprisonment, assault and battery, falsifying evidence and/or filing false reports; retaliating to the plaintiff's freedom of speech; denying plaintiff prompt and necessary medical attention;

failing to make adequate and appropriate provision for plaintiff's physical condition at the time of arrest and confinement; failing to intervene, stop and mitigate misconduct; illegal and excessive retention of property, destruction and/or loss of property and malicious prosecution, the defendant, Police "Officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, "the officers" individually and/or collectively violated 42 U.S.C. §1983.

75. That as a direct proximate result of "the officers" actions plaintiff was subjected to great indignities and humiliation, pain and distress of mind and body, loss of freedom and was injured thereby.

76. That by reason of the aforesaid, plaintiff was imprisoned and injured in mind and body, still suffers, and upon information and belief will continue to suffer great physical and mental pain,.

77. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR MALICIOUS PROSECUTION

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.

79. The plaintiff was maliciously prosecuted by the defendants in that the plaintiff was arrested, imprisoned and prosecuted based upon false claims, reports, documentation, and/or statements and/or omissions made by the defendants with the intent to prosecute the plaintiff for crimes they knew she did not commit.

80. The plaintiff was caused to appear in court to defend against the false charges.

81. The plaintiff was innocent of all crimes charged

82. All criminal charges were dismissed against the plaintiff.

83. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the Seventh Cause of Action)and such other and further relief as to the Court seems just and proper on the First through the Eighth causes of action.

DATED: New York, New York
March 14 ,2019



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

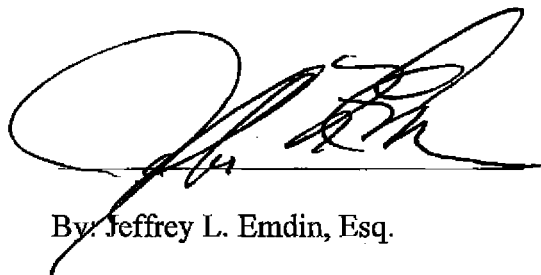
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 14, 2019



By: Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DARLENE OLIVER,

Plaintiff,

-against-

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER ANDUJAR, TAX REG 941348, INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER JOHN DOES #1 - #5, INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL

Attorney for Plaintiff

499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

TO: Office of the Corporation Counsel
City of New York
100 Church Street
New York, NY 10007

The New York City Police Department
1 Police Plaza
New York, NY 10038

Police Officer Andujar
Tax ID # 941348
c/o 41st Pct.
1035 Longwood Avenue
Bronx, NY 10459

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 14, 2019

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

[] NOTICE OF ENTRY that the within is a true copy of a Order dated _____, by the
Honorable _____ duly entered in the office of the clerk of the within named court on

[] NOTICE OF SETTLEMENT that an order _____ of which the within is a true copy will
be _____ presented for settlement to the HON. _____ one of the judges of the within named Court, at
on _____ 20____